

PROJECT MANAGEMENT AGREEMENT

This Agreement is made this ____ day of _____, 20

BETWEEN

1402 CELSIUS LTD
20-22 Wenlock Road
N1 7GU, London
United Kingdom
Company Registration No: 12475013
VAT No: GB 343 1702 32
(hereinafter referred to as the "Service Provider")

AND

[CLIENT NAME]
Address: [CLIENT ADDRESS]
[CLIENT CITY, POSTAL CODE, COUNTRY]
(hereinafter referred to as the "Client")

RECITALS

WHEREAS:

- A. The Client wishes to explore and execute a real estate investment in [Region], Italy, and requires professional project coordination and representation services to support this endeavour;
- B. The Service Provider acts as a Project Coordinator and Client Representative, responsible for managing and coordinating all third-party professionals, ensuring their deliverables are completed on time and according to the project plan agreed with the Client (the "Project Owner");
- C. The Service Provider, through its authorized representatives and associates, possesses the necessary qualifications, experience, and local expertise to coordinate, manage, and oversee all professional services required for the project;
- D. The Service Provider undertakes responsibility for the performance management of all engaged professionals, while the actual technical services are performed by qualified third-party specialists;
- E. The parties wish to enter into this professional services agreement under the terms and conditions set forth below;

ARTICLE 1 – SCOPE OF SERVICES

1.0 Nature of Services

The Service Provider acts exclusively as a Project Coordinator and Client Representative, responsible for:

- Coordinating and managing all third-party professionals engaged in the project
- Representing the Client's interests in all project-related matters
- Ensuring timely delivery of all professional services according to the agreed project plan
- Monitoring and reporting on the performance of all engaged professionals
- Acting as the single point of contact between the Client and all project stakeholders

The Service Provider does not directly perform technical services (architectural, engineering, construction, legal, or financial advisory) but ensures these services are delivered by qualified professionals according to the Client's requirements and timeline.

1.1 Confidentiality and Data Protection

The Service Provider agrees to:

- Maintain strict confidentiality over all information shared by the Client, including property details, business models, strategies, financial information, and related materials
- Comply with UK GDPR and data protection regulations
- Not disclose or use confidential information for any purpose other than serving the Client's interests
- Return or destroy all confidential materials upon project completion or termination

1.2 Entity Setup and Legal Framework – Coordination Services

- Coordination of legal professionals for establishing an Italian SRL or appropriate legal entity
- Management of the process for obtaining SPID and digital signatures through authorized providers
- Oversight of local registrations, tax codes, and legal compliance through qualified professionals
- Scheduling and coordination with Italian notaries and legal professionals
- Ensuring all legal documentation is properly prepared and delivered on schedule

1.3 Property Assessment and Strategic Planning – Representation Services

- Representing the Client in property viewings and negotiations
- Coordinating property surveyors and valuation experts

- Managing market analysis through qualified research professionals
- Overseeing development of sustainable business models through specialist consultants
- Ensuring all strategic planning deliverables meet agreed timelines and quality standards

1.4 Grant and Financial Application Management – Coordination & Accountability

- Managing accredited grant consultants for identifying funding opportunities (including Mini PIA Turismo)
- Overseeing preparation and timely submission of all application documents
- Coordinating business plan development through qualified financial advisors
- Representing the Client in meetings with banks and financial institutions
- Taking responsibility for ensuring all grant application deadlines are met
- Monitoring and reporting on application progress and outcomes

1.5 Project Implementation Oversight – Management Responsibility

- Selection and performance management of all technical teams, architects, engineers, and contractors
- Accountability for project delivery according to agreed timelines and budget
- Coordinating all professionals to ensure adherence to the approved project plan
- Managing the permit application process through qualified professionals
- Providing regular progress reports with clear accountability for any delays or issues
- Taking responsibility for corrective actions when deliverables are not met

1.6 Construction and Renovation Coordination – Site Management

- On-site representation to ensure contractor compliance with project specifications
- Managing relationships with all contractors and ensuring performance standards
- Coordinating resolution of technical issues through appropriate professionals
- Accountability for project milestones and quality standards
- Overseeing health and safety compliance through qualified supervisors
- Regular site inspections and progress reporting to the Client

1.7 Project Completion and Handover – Final Delivery

- Ensuring all professionals complete their final deliverables on schedule
- Coordinating the obtainment of Certificate of Habitability through qualified technicians
- Managing final inspections with relevant authorities
- Taking responsibility for complete project documentation delivery
- Ensuring smooth handover with all required certifications in place

ARTICLE 2 – DURATION

2.1 Commencement

This Agreement shall commence on the date of execution by both parties.

2.2 Term

The Agreement shall remain in effect until the completion of the financed project, defined as:

- The official approval and disbursement of grant funding, OR
- The completion of the property purchase and any associated renovation works, OR
- As otherwise agreed in writing between the parties

2.3 Termination Notice

Any extension or early termination must be agreed in writing with at least thirty (30) days' prior notice.

ARTICLE 3 – COMPENSATION AND PAYMENT TERMS

3.1 Fee Structure

A. Initial Retainer Fee €5,000 due upon signing this Agreement

B. Second Payment €5,000 due upon signing of the preliminary purchase contract (Contratto Preliminare/Compromesso)

C. Performance Bonus 7.5% of any savings achieved on the chosen property's asking price

- Payable upon signing of the final deed
- Calculated as: (Initial Asking Price - Final Purchase Price) × 7.5%

D. Success-Based Commission A commission of 2.5% on the total project value submitted for financing (excluding unrelated consultancy or accessory costs), structured as follows:

- 1% upon grant approval and/or bank co-financing confirmation (Less the Second Payment of €5,000 if applicable to grant-funded projects)
- 1% at the commencement of construction/renovation works (Evidenced by official work commencement declaration)
- 0.5% upon issuance of the final Certificate of Habitability (SCA)

3.2 Payment Terms

- All payments are due within five (5) days of invoice date
- Invoices will be issued in EUR
- VAT will be added at the applicable rate
- Late payments shall incur interest at 8% above the Bank of England base rate
- The Service Provider reserves the right to suspend services for overdue payments exceeding 15 days

ARTICLE 4 – MUTUAL OBLIGATIONS

4.1 Service Provider's Obligations

The Service Provider shall:

- Take full responsibility for managing and delivering all third-party professional services on time and according to the agreed project plan
- Be accountable for the performance and deliverables of all engaged professionals
- Ensure all professionals meet their contractual obligations and quality standards
- Perform coordination services with professional skill and care
- Provide regular progress updates (minimum bi-weekly) with clear status on all deliverables
- Maintain appropriate professional records
- Actively manage and supervise all professionals to ensure timely delivery
- Take corrective action when any professional fails to meet agreed standards or timelines
- Act as the Client's representative in all project matters
- Grant the Client free of charge access to its dedicated project management platform Apulink.com where point 4.1 will be tracked and monitored in real time

4.2 Client's Obligations

The Client shall:

- Provide all required documentation and information in a timely manner
- Make decisions promptly when required for project progression
- Fulfill all payment obligations as per this Agreement
- Cooperate fully to ensure smooth project execution
- Provide Power of Attorney where necessary for Italian transactions
- Maintain adequate funds for property purchase and associated costs

ARTICLE 5 – INTELLECTUAL PROPERTY

5.1 Ownership

All project documentation, plans, and materials created specifically for the Client shall become the Client's property upon full payment of fees.

5.2 Service Provider's Materials

The Service Provider retains all rights to its proprietary methods, templates, and general know-how.

ARTICLE 6 – LIABILITY AND INDEMNIFICATION

6.1 Limitation of Liability

The Service Provider's liability is limited to its role as Project Coordinator and Client Representative. While the Service Provider takes responsibility for managing professional deliverables, it shall not be liable for:

- Technical errors or omissions by third-party professionals (architects, engineers, lawyers, etc.)
- Professional malpractice by engaged specialists
- Delays caused by third parties beyond the Service Provider's reasonable control

The Service Provider's total liability for coordination and management services shall not exceed the total fees paid by the Client, except in cases of gross negligence or willful misconduct in performing coordination duties.

6.2 Performance Accountability

The Service Provider accepts accountability for:

- Ensuring all professionals are properly qualified and selected
- Managing professionals to deliver according to agreed timelines
- Taking corrective action when performance issues arise
- Maintaining proper oversight and reporting

6.3 Indemnification

Each party shall indemnify the other against claims arising from their own negligent acts or omissions.

6.4 Force Majeure

Neither party shall be liable for delays or failures due to circumstances beyond their reasonable control, including but not limited to acts of God, war, pandemic, or changes in Italian law.

ARTICLE 7 – TERMINATION

7.1 Termination Events

This Agreement may be terminated:

- By mutual written consent
- By either party with 30 days' written notice for convenience
- Immediately for material breach after 14 days' written notice to cure
- Upon completion of the services

7.2 Consequences of Termination

Upon termination:

- The Service Provider shall be paid for all services rendered to date
- All confidential information shall be returned
- Any ongoing obligations shall survive termination

ARTICLE 8 – DISPUTE RESOLUTION

8.1 Governing Law

This Agreement shall be governed by and construed in accordance with the laws of England and Wales.

8.2 Dispute Resolution Process

1. **Negotiation:** The parties shall first attempt to resolve disputes through good faith negotiation
2. **Mediation:** If negotiation fails, disputes shall be submitted to mediation under CEDR rules
3. **Arbitration:** Unresolved disputes shall be finally settled by arbitration under LCIA rules
4. **Jurisdiction:** The courts of England and Wales shall have exclusive jurisdiction for any court proceedings

ARTICLE 9 – GENERAL PROVISIONS

9.1 Entire Agreement

This Agreement constitutes the entire agreement between the parties and supersedes all prior agreements and understandings.

9.2 Amendments

Any amendments must be in writing and signed by both parties.

9.3 Severability

If any provision is found to be unenforceable, the remainder shall continue in full force and effect.

9.4 Assignment

Neither party may assign this Agreement without the other party's written consent.

9.5 Notices

All notices shall be in writing and sent to the addresses stated above or by email to designated addresses.

9.6 Relationship

Nothing in this Agreement creates a partnership, joint venture, or employment relationship.

9.7 Third Party Rights

This Agreement does not confer any rights on third parties under the Contracts (Rights of Third Parties) Act 1999.

9.8 Counterparts

This Agreement may be executed in counterparts, each of which shall be deemed an original.

EXECUTION

FOR THE SERVICE PROVIDER:

1402 CELSIUS LTD

By: _____

Title: _____

Date: _____

FOR THE CLIENT:

[Client Name]

By: _____

Title: _____

Date: _____

SCHEDULE A – SPECIFIC PROJECT DETAILS

Property Location/Region: _____

Estimated Project Value: _____

Target Completion Date: _____

Specific Grant Programs: _____

SCHEDULE B – CONTACT INFORMATION

Service Provider's Project Manager:

Name: _____

Email: _____

Phone: +39 351 400 1402

Client's Primary Contact:

Name: _____

Email: _____

Phone: _____

SCHEDULE C – BANKING DETAILS

Bank Name: _____

Account Name: 1402 Celsius Ltd

IBAN: _____

SWIFT/BIC: _____